

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-01

Visual Comfort & Co.

v.

COSCO Shipping Lines Co., Ltd.

**MOTION TO CONSIDER RESPONDENT'S DISCOVERY CONCERNS
CONCURRENTLY WITH THOSE OF COMPLAINANT**

Respondent COSCO Shipping Lines Co., Ltd (“Respondent” or “COSCO,”) by and through its undersigned counsel, moves pursuant to 46 C.F.R. § 502.69 and 46 C.F.R. § 502.71(a) to request that the Presiding Officer consider Respondent’s discovery concerns concurrently with those of Complainant Visual Comfort & Co. (“Complainant” or “VCC”).

Respondent conferred with Counsel for Complainant on January 29, 2025, asking for Complainant’s position on the instant motion. At Complainant’s request, Respondent furnished additional details regarding the motion. Complainant has not yet provided a substantive response.

COSCO is extremely concerned that the Presiding Officer is considering Complainant’s discovery concerns outside the context of the Initial Decision, while not affording the same attention to Respondent’s discovery concerns, even though Judge Crovella ordered that they both be considered only in connection with the Initial Decision. Respondent believes that this is fundamentally unfair and improperly tilts the playing field, even though Respondent’s concerns are considerably more serious than the cavils raised by Complainant. If any more discovery is to be ordered, it needs to address both Parties’ concerns, not just favor Complainant.

During the course of the discovery process, Respondent repeatedly raised concerns before Judge Crovella regarding Complainant's failure to comply with its discovery obligations. On May 30, 2024, Respondent filed two motions to compel: one to compel production of documents and one to compel adequate responses to requests for admission and interrogatories. On July 17, 2024, Judge Crovella issued a Partial Order on Motions to Compel, stating, *inter alia*, that Complainant "must be prepared to pursue its case ... including providing responses to discovery requests when propounded according to the schedule, to the extent possible at that time. If it is not able to prosecute its case, it risks involuntary dismissal. July 17, 2024 Order at 7. On July 31, 2024, Judge Crovella issued a Memorandum Order on Motions to Compel, granting in substantial part both of Respondent's motions to compel.

In August, the parties jointly requested an amended schedule, which was granted, extending the close of discovery to October 18, 2024. On October 2, 2024, Respondent filed a Second Motion to Dismiss for Failure to Prosecute ("Second MTD"), based substantially on Complainant's abuse of the discovery process. In this Second MTD, COSCO moved for the dismissal of the amended complaint "because VCC has failed to prosecute its case by withholding documents critical to COSCO's defense" The MTD elaborated, among other things, that VCC appeared to have deliberately withheld obviously responsive documents, failing to produce them until after they were cited by its witnesses in deposition. COSCO also expressed concern that VCC refused to produce documents used by or otherwise related to the report of its expert witness. Judge Crovella deferred all discovery issues, stating that "to the extent that discovery issues have not already been adjudicated by the two previous orders on motions to compel, *the parties* may raise objections and requests to exclude or obtain evidence in their briefs, citing to appropriate authority." October 8, 2024 Order at 4 (emphasis added)

This holding, that **both** parties should address discovery issues in their briefs relating to the Initial Decision, was reaffirmed by Judge Crovella in her November 15, 2024 Order denying Complainant's late-filed Second Motion to Compel (submitted two days before the end of discovery). She there stated, "For the sake of judicial efficiency, as addressed in the Order, and due to the timing of VCC's Second Motion to Compel, the ***motion will be decided in the Initial Decision.***" November 15, 2024 Order at 4 (emphasis added).

Respondent has no problem responding to the Presiding Officer's Order of January 24, 2025, to explain the thorough searches that were conducted and document that **all** responsive documents¹ were provided to Complainant long ago. But COSCO is concerned about the Presiding Officer's failure to recognize COSCO's discovery concerns, which we assume is due to his lack of familiarity with the past pleadings, and to address them concurrently with Complainant's quibbles. Among other concerns, Respondent has demonstrated in its Second Motion to Dismiss and in its Opposition Brief that:

- Complainant strongly appears to have deliberately withheld responsive documents.
- Respondent still has absolutely no idea what searches Complainant did or did not run. We have never been told what searches were run and we had no opportunity for input into the terms for such searches (unlike the searches run by Respondent, which were dictated by Complainant).
- Whatever searches Complainant may or may not have run, they were patently insufficient. As with Ivory soap, the documents Complainant provided were 99.44% pure junk, which it improperly dumped on Respondent.
- Many, if not most, of the few relevant documents Respondent eventually received were produced **only after** they were specifically identified by VCC witnesses in deposition. That means COSCO had no opportunity for follow-up by subsequent discovery requests or by deposition.

¹ Respondent withheld only two privileged documents, which were identified in its privilege log and to which Complainant has never objected.

- Complainant still refuses to provide documents relating to its expert witness's report and his multiple, unexplained revisions thereto.

For the foregoing reasons, Respondent respectfully submits that its Motion to Consider Respondent's Discovery Concerns Concurrently with Those of Complainant should be granted.

Dated: January 30, 2025

Respectfully submitted,



Eric C. Jeffrey
Rebecca A. Fenneman
Kaya C. Massey
Nicholas L. Webb

JEFFREY FENNEMAN LAW
+ STRATEGY, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005

Counsel for Respondent

CERTIFICATE OF SERVICE

I hereby certify that on this 29th day of January, 2025, a true and correct copy of the foregoing **Respondent's Motion to Consider Respondent's Discovery Concerns Concurrently with those of Complainant** was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

ATTORNEYS FOR COMPLAINANT:

Jennifer M. Oliver, Esq.
BUCHANAN INGERSOLL & ROONEY
600 W. Broadway, Suite 1100
San Diego, CA 92101
(619) 695-1900
Jennifer.oliver@bipc.com

Melissa J. Bayly, Esq.
BUCHANAN INGERSOLL & ROONEY
550 Broad Street, Suite 810
Newark, NJ 07102-4582
(973) 424-5604
melissa.bayly@bipc.com

Jacob M. Adams, Esq.
BUCHANAN INGERSOLL & ROONEY
1737 King Street, Suite 500
Alexandria, VA 22314-2727
(717) 237-4856
jake.adams@bipc.com



Kaya C. Massey
KMassey@JeffreyFenneman.com
JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005